

STATE OF NEW YORK

4940--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 10, 2025

Introduced by M. of A. TAPIA, HYNDMAN, HEVESI, KELLES, CLARK, LUNSFORD, RAGA, ALVAREZ, MEEKS, MAMDANI, REYES, SHRESTHA -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the family court act and the social services law, in relation to establishing procedures regarding orders of post-termination visitation and/or contact between a child and such child's parent

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 634 of the family court act, as amended by chapter 666 of the laws of 1976, is amended to read as follows:

§ 634. Commitment of guardianship and custody; further orders. The court may enter an order under section six hundred thirty-one of this part committing the guardianship and custody of the child to the petitioner on such conditions, if any, as it deems proper, including but not limited to, an order of post-termination visitation and/or contact pursuant to section three hundred eighty-four-b of the social services law.

§ 2. Section 384-b of the social services law is amended by adding six new subdivisions 14, 15, 16, 17, 18, and 19 to read as follows:

14. (a) Upon application by any party to a proceeding under this section, (i) the court shall order post-termination visitation and/or contact between the child and such child's parent who is a party to such proceeding on such terms and conditions as may be agreed upon by the parent, the child, and the foster parent or authorized agency prior to the entry of an order committing the guardianship and custody of the child; or (ii) if any party does not consent, the court may order post-termination visitation and/or contact between the child and the child's parent after a hearing at which the court has determined that (A) the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 party's consent is being unreasonably withheld; and (B) post-termination
2 visitation and/or contact would be in the best interest of the child.

3 (b) The hearing to determine whether the court should enter an order
4 of post-termination visitation and/or contact shall be held either (i)
5 concurrently with a dispositional hearing held in the proceedings to
6 terminate the parent's rights pursuant to this section; or (ii) if no
7 dispositional hearing is held, subsequent to the close of the fact-find-
8 ing hearing on the underlying petition to terminate the parent's rights
9 and prior to the court's entry of an order committing the guardianship
10 and custody of the child. The court shall not hold such a hearing at
11 any other time.

12 (c) Parents and children who are parties to a termination proceeding
13 under article six of the family court act or this section, as well as
14 such child's foster parents, or, in the case of a child who is not in
15 the care of a foster parent, the authorized agency, shall have notice of
16 and standing to participate in the best interest post-termination visi-
17 tation and/or contact hearing. A child who is a party to a post-termina-
18 tion visitation and/or contact hearing must be represented by an attor-
19 ney for the child.

20 (d) The applicant shall have the burden of proof that (i) the opposing
21 party's consent has been unreasonably withheld; and (ii) post-termina-
22 tion visitation and/or contact is in the child's best interest.

23 (e) If the application for post-termination contact is denied after
24 this hearing, the applicant shall not have standing to bring the same
25 application in any other proceeding regarding the same child. However,
26 if the court grants any visitation and/or contact, an application to
27 modify the order, upon a showing of substantial change in circumstances,
28 may still be brought, pursuant to subdivision fifteen of this section.

29 (f) The court shall have discretion, depending on the best interests
30 of the child, to determine the nature of any post-termination visitation
31 and/or contact.

32 (g) Notwithstanding the provisions of paragraph (a) of this subdivi-
33 sion, in no event shall an order of post-termination visitation and/or
34 contact be entered where a court has entered a finding pursuant to para-
35 graph (a) or (b) of subdivision eight of this section that a parent
36 severely or repeatedly abused the child, except where a court has deter-
37 mined that the parent seeking post-termination visitation and/or contact
38 was not the perpetrator of such severe or repeated abuse of such child.

39 (h) If the child is over fourteen years of age, the consent of such
40 child to post-termination visitation and/or contact is required.

41 (i) The court in its order shall indicate such person or persons who
42 were given notice of the proceeding and whether such person or persons
43 appeared.

44 15. All parties to a post-termination visitation and/or contact order
45 entered pursuant to subdivision fourteen of this section, as well as any
46 person who subsequently becomes the child's legal guardian, custodian or
47 adoptive parent, may move the court to enforce or modify such order.
48 Upon motion for modification by any such party, (i) the court shall
49 enter an order modifying such post-termination visitation and/or contact
50 order on such terms and conditions as may be agreed upon by the parties,
51 or, (ii) if any party does not consent, the court may enter an order
52 modifying such post-termination visitation and/or contact order, after a
53 hearing at which the court has determined that (A) the party's consent
54 is being unreasonably withheld; and (B) the modification would be based
55 on a showing of a substantial change in circumstances and the best
56 interests of the child.

1 16. Nothing in subdivision fourteen or fifteen of this section shall
2 be construed to limit the rights of half-siblings or siblings to seek
3 contact pursuant to subdivision nine of this section or section seven-
4 ty-one of the domestic relations law following a termination of parental
5 rights or adoption.

6 17. The failure of an authorized agency or a child's foster parent or
7 any other person who subsequently becomes the child's legal guardian,
8 custodian or adoptive parent to comply with the terms of the order of
9 post-termination visitation and/or contact shall not constitute a basis
10 for invalidating either the order committing the guardianship and custo-
11 dy of the child to the petitioner or any subsequent order of adoption
12 regarding such child.

13 18. Unless a stay of adoption proceedings is granted by a judge of the
14 family court or appellate court, an appeal from any order regarding the
15 application for post-termination visitation and/or contact shall not
16 provide a basis for delaying the finalization of a child's adoption.

17 19. Pursuant to paragraph (iv) of subdivision (a) of section two
18 hundred sixty-two of the family court act, the foster parent, adoptive
19 parent, legal guardian or custodian shall have the right to assigned
20 counsel in any proceedings pursuant to this section.

21 § 3. This act shall take effect on the one hundred eightieth day after
22 it shall have become a law.